

Tentative Rulings and Resolution Review Hearings
September 8, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

******IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.******

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2480 682 3750. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to speaking with the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. Law and Motion

IN RE: BATES

CASE NUMBER: 26CV-0210349

Tentative Ruling on Petition for Name Change: Petitioner Stephanie Bates seeks to change her own last name, as well as her three minor children's last names, to Archer. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. No proof of publication has been provided.

Additionally, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). No proof of service is on file for Aaron Hille, who is identified in the Petition as a parent of two of the minors. The Petition indicates the father of one of the minors is deceased.

This matter is continued to **Monday, October 26, 2026, at 8:30 a.m. in Department 64** to permit service on the father. Petitioner shall file an Amended Order to Show Cause ("Amended OSC") for the continued hearing date. The Amended OSC must be personally served on the father at least 30 days before the continued hearing date. No appearance is necessary on today's calendar.

CAICEDO VS. SUNBABE, LTD

CASE NUMBER: 25CV-0208229

Tentative Ruling on Motion to Quash Service of Summons: The Complaint in this personal injury action was filed on July 18, 2025. Defendant, Sunbabe, LTD, now specially appears to move for an order quashing Plaintiff's service of Summons. Plaintiff opposes the Motion. The Court notes Defendant's reply was untimely. The Court in its discretion will consider the late reply.

Requests for Judicial Notice.

Defendant request the Court take judicial notice of:

- (1) A copy of Defendant's Certificate of Incorporation and Articles of Incorporation issued by the Ontario Ministry of Public and Business Service Delivery.
- (2) A copy of the Certificate of Dissolution of Sunbabe, LTD issued by the Ontario Ministry of Public and Business Service Delivery.
- (3) A copy of Defendant's Articles of Dissolution.

Plaintiff requests the Court take judicial notice of:

- (1) Ontario Business Corporations Act, R.S.O. 1990, chapter B.16, Section 242- addresses proceedings against a dissolved corporation, service on a person last known as a director or officer and notice to Ontario governmental officials.
- (2) Ontario Rules of Civil Procedure, R.R.O. 1990, Regulation 194, rules 16.02, 16.03, 16.04, 16.08, and 16.09- addresses personal service on a corporation, alternatives at a residence or last registered office, sub-service, and proof.
- (3) Hague Conference on Private International Law, Canada Information under the Convention of 15 November 1965 on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters, including Canada's recorded lack of opposition to Article 10(a), 10(b), and 10(c), the identification of process services as competent persons, and the Ontario Central Authority service estimate.

Defendant objects to Plaintiff's request as to the legal effect of Ontario Business Corporations Act, the Ontario Rules of Civil Procedure, Hague Service Convention materials, Canada's recorded lack of opposition to Article 10(a), (b), and (c), the identification of process servers as competent persons, and the Ontario Central Authority service estimate. The objections are overruled. All requests for judicial notice are granted pursuant to Evid. Code § 452 and 453.

Evidentiary Objections. Plaintiff's objections 1 and 2 are sustained; objection 3 is overruled. Defendant's objections 1 and 3 are sustained; objections 2 and 5 through 9 are overruled.

Merits. Defendant seeks an order quashing service of summons on the grounds that Sunbabe, LTD is a dissolved corporation, there is a lack of personal jurisdiction over Defendant, and service of the Summons and Complaint was insufficient.

Dissolution. Defendant argues that the court lacks personal jurisdiction because it is a dissolved corporation no longer in existence. Sunbabe, LTD dissolved on April 28, 2025, however this case wasn't filed until July 18, 2025. "It appears to be settled law that the effect of the dissolution of a corporation, or its expiration otherwise, depends upon the law of its domicile, and that a defunct foreign corporation has no greater capacity or higher standing to commence or maintain an action in the state of the forum than it would have in the state of its domicile." *Fidelity Metals Corp. v. Risley* (1946) 77 Cal.App.2d 377. Sunbabe, LTD was a corporation in Ontario, Canada, therefore the laws of Ontario, Canada control.

It is undisputed that if the law of Ontario, Canada control, that Ontario Business Corporations Act (OBCA) Section 242 applies. OBCA Section 242(1)(b) provides that "[d]espite the dissolution of a corporation under this Act...a civil, criminal, administrative, investigative, or other action or proceeding may be brought against the corporation as if it has not been dissolved." Considering an action may be filed against Defendant in Ontario, Canada, an action may also be filed against Defendant here.

Service of Process. Service of process must comply with Canadian and California law in a manner reasonably calculated to give actual notice, subject to the Hague Service Convention. CCP § 413.10. "Failure to comply with the Hague Service Convention procedures voids the service even though it was made in compliance with California law." *Kott v. Superior Court* (1996) 45 Cal.App.4th 1126. It is undisputed that Canada is a signatory to the Hague Service Convention.

"The primary innovation of the Convention is that it requires each state to establish a central authority to receive requests for service of documents from other countries. 20 U.S. T. 362, T. I. A. S. 6638, Art. 2. Once a central authority receives a request in the proper form, it must serve the documents by a method prescribed by the internal law of the receiving state or by a method designated by the requester and compatible with that law. Art. 5. The central authority must then provide a certificate of service that conforms to a specified model. Art. 6." *Volkswagenwerk Aktiengesellschaft v. Schlunk* (1988) 486 U.S. 694, 698. Defendant argues that service was ineffective because Plaintiff did not provide service through Canada's central authority. However, "[a] state also may consent to methods of service within its boundaries other than a request to its central authority. Arts. 8-11, 19." *Id.*

Plaintiff raises that Article 10 identifies alternatives where the destination state has not objected and alleges that Canada has not objected to Article 10(a), 10(b), or 10(c). Article 10 states:

“Provided the State of destination does not object, the present Convention shall not interfere with – a) the freedom to send judicial documents, by postal channels, directly to persons abroad, b) the freedom of judicial officers, officials or other competent persons of the State of origin to effect service of judicial documents directly through the judicial officers, officials or other competent persons of the State of destination, (c) the freedom of any person interested in a judicial proceeding to effect service of judicial documents directly through the judicial officers, officials or other competent persons of the State of destination.”

Water Splash, Inc. v. Menon (2017) 581 U.S. 271, 275.

Here, the proof of service of summons filed on April 21, 2026, indicates service was made by substituted service. Whether or not Canada has objected to Article 10 of the Hague Service Convention is irrelevant. Substituted service is not an authorized alternative method of service permitted by Article 10. The Court notes that under OBCA Section 242(2), “service of any process on a corporation after its dissolution shall be deemed to be sufficiently made if it is made upon any person last shown on the records of the Ministry as being a director or officer of the corporation before the dissolution.” Service was made upon a purported co-founder’s mother, who is undisputedly not a former director or officer of the corporation. Additionally, the process server was told on several occasions that the co-founder he sought to serve did not live at the service address and exhibit A of the declaration of Cordiano indicates several other addresses were located but no information was provided regarding whether any attempts were made to serve the required parties at these addresses.

The Court notes that lack of personal jurisdiction was also raised by Defendant and Plaintiff requested limited jurisdictional discovery. However, the Court is unable to rule on the merits regarding personal jurisdiction until the Summons and Complaint have been properly served.

The Motion to quash service of Summons is **GRANTED** on the grounds that service of the Summons and Complaint is invalid. No proposed order has been lodged as required by Local Rule 5.17(D). Defendant shall prepare the order.

LAKEVIEW LOAN SERVICING, LLC VS. GONZALEZ, ET AL.

CASE NUMBER: 25CV-0207895

Tentative Ruling on Order to Show Cause Re Dismissal: An Order to Show Cause Re: Dismissal (“OSC”) issued on August 7, 2026, pursuant to Gov’t Code § 68608(b) to Plaintiff and Counsel for failure to timely serve pursuant to CRC 3.110(b) and failure to timely prosecute. No response to the OSC has been filed. Sanctions of \$250, and \$500 have previously been imposed and have not been paid. It appears that no lesser sanctions will prompt compliance. This action is **DISMISSED**. The clerk is instructed to prepare a separate Order of Dismissal. No appearance is necessary on today’s calendar.

LANE VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206212

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on July 23, 2026, to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement in violation of CRC 3.1380. All parties have submitted Declarations in response to the OSC which explain the failure to timely file MSC statements. The OSC is **DISHCHARGED**. No sanctions will be imposed. **Trial is set to**

commence tomorrow, September 9, 2026 at 8:45 a.m in Department 64. No appearances are necessary on today's calendar.

MCCAIN VS. EST OF RICHARD CARL RIPLEY, ET AL.

CASE NUMBER: 25CV-0207239

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on August 12, 2026, to Plaintiff for failure to appear at the hearing on the Order to Show Cause re Dismissal on July 6, 2026. No response to the OSC has been filed. Sanctions will be imposed in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. The Court confirms today's review hearing set for 9:00 a.m.

PRESIDIO, ET AL. VS. FCA US LLC, ET AL.

CASE NUMBER: 25CV-0209055

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on July 15, 2026, to Plaintiffs and Counsel, for failure to timely serve pleadings. No response to the OSC has been filed. However, the Court notes that proper proof of service of summons has been filed. The OSC is **DISCHARGED**. Sanctions will not be imposed. This matter is set for review regarding status of responsive pleadings on **Monday, October 12, 2026 at 9:00 a.m. in Department 64.** No appearances are necessary on today's calendar.

IN RE: RADIE

CASE NUMBER: 26CV-0210405

Tentative Ruling on Petition for Change of Name: Petitioner Amber Marie Radie seeks to change her minor daughter's name. Proper proof of service of the father is on file. On August 13, 2026, the minor's father Adam Mattson filed a Declaration, stating his consent to the name change. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

ROCKY TOP RENTALS, LLC VS. VAN NORMAN ERICKSON, ET AL.

CASE NUMBER: 25CVG-02320

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on August 12, 2026, to Plaintiff and Counsel for failure to serve and timely prosecute. This action was filed November 6, 2025 and is still not at issue. No proof of service of summons is on file for Defendant Eli Van Norman Erickson or Mark Ludwig. No response to the OSC has been filed. Sanctions will be imposed in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. The Court confirms today's review hearing set for 9:00 a.m.

SEKHON VS. HUTT

CASE NUMBER: 26CV-0211420

Tentative Ruling on Special Motion to Strike: Defendant Christopher Hutt moves to strike the Complaint pursuant to CCP § 425.16. The Court cannot reach the merits of the Motion, because it was not timely noticed for today's hearing date. The Proof of Service by mail was filed August 14, 2026. It states the Motion was mailed to Plaintiff on August 13, 2026, which is untimely by 4 days. See CCP § 1005(b), which requires 16 court days' notice, plus 5 calendar days for mailing. Absent a request for a continuance to timely notice the Motion, the Court intends to deny it without prejudice.

Tentative Ruling on Motion for Sanctions: Defendant Christopher Hutt moves for sanctions pursuant to CCP § 128.7. The Court cannot reach the merits of the Motion, because it was not timely noticed for today’s hearing date. The Proof of Service by mail was filed August 14, 2026. It states the Motion was mailed to Plaintiff on August 13, 2026, which is untimely by 4 days. See CCP § 1005(b), which requires 16 court days’ notice, plus 5 calendar days for mailing.

Additionally, a motion made pursuant to CCP § 128.7 requires an additional 21 calendar days’ notice prior to filing. This “safe harbor” provision, set forth in CCP § 128.7(c)(1) provides in relevant part: “A motion for sanctions under this section shall be made separately from other motions or requests and shall describe the specific conduct alleged to violate subdivision (b). Notice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court unless, within 21 days after service of the motion, or any other period as the court may prescribe, the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected.” There is no evidence in the record that Defendant complied with this requirement prior to filing. Therefore the Motion for Sanctions is **DENIED**. No proposed order was submitted as required by Local Rule 5.17(D). Defendant shall submit the proposed order.

SP CONTRACTING, INC. VS. HOUSTON, ET AL.
CASE NUMBER: 26CVG-00664

Tentative Ruling on Demurrer: Defendants Alex Houston and Desiree Houston demur to Plaintiff’s Second Cause of Action for Common Count – Quantum Meruit, pursuant to CCP § 430.10(e) on the ground that it fails to state facts sufficient to constitute a cause of action. Plaintiff opposes the demurrer.

This action arises out of the construction of a backyard swimming pool. The Complaint alleges that the parties entered into a written Bid Proposal for the construction of a pool on September 27, 2023. It further alleges the parties entered into an Extra Work Order on April 20, 2025. Plaintiff alleges it substantially performed, and that Defendants refused to pay a \$30,903.75 installment payment.

Plaintiff’s Complaint, filed April 1, 2026, alleges two causes of action: 1) Breach of Contract, and 2) Common Count – Quantum Meruit (Reasonable Value of Work, Labor, and Materials). On July 29, 2026, Plaintiff dismissed the first cause of action for breach of contract. Only the second cause of action for quantum meruit remains.

“‘Quantum meruit refers to the well-established principle that “the law implies a promise to pay for services performed under circumstances disclosing that they were not gratuitously rendered.” [Citation.] To recover in quantum meruit, a party need not prove the existence of a contract [citations], but it must show the circumstances were such that “the services were rendered under some understanding or expectation of both parties that compensation therefor was to be made.”’ [Citation.]” (*Miller v. Campbell, Warburton, Fitzsimmons, Smith, Mendel & Pastore* (2008) 162 Cal.App.4th 1331, 1344.) “The underlying idea behind quantum meruit is the law’s distaste for unjust enrichment. If one has received a benefit which one may not justly retain, one should ‘restore the aggrieved party to his [or her] former position by return of the thing or its equivalent in money.’ [Citation.]” *E. J. Franks Construction, Inc. v. Sahota* (2014) 226 Cal.App.4th 1123, 1127-1128.

Defendant specially and generally demurs to Plaintiff's Second Cause of Action for Common Count/Quantum Meruit pursuant to CCP 430.10(e) because "the alleged swimming pool contract fails to contain the terms and notices required by Cal. Bus. & Prof. Code §§ 7159 and 7167 rendering the alleged contract "void and unenforceable by the contractor as contrary to public policy." (Cal. Bus. & Prof. Code § 7167(a).) Whether the contract is "void and unenforceable by the contractor" is relevant only to the breach of contract claim, which has been dismissed. To recover in quantum meruit, a party need not prove the existence of a contract. Defendant argues that noncompliance with section 7159 renders the services performed illegal and therefore prohibits Plaintiff from any recovery for materials and labor. This is not necessarily the case.

"The question of the effect of noncompliance with section 7159 was considered by our Supreme Court in *Asdourian v. Araj* (1985) 38 Cal.3d 276. In that case, a contractor sued the owner for the balance due on remodeling work performed on the owner's property. The owner argued that the contractor was barred by section 7159 from recovering for the completed work as it was done pursuant to oral agreements. The court rejected this argument, holding that an oral contract in violation of section 7159 is merely voidable and not void.

The court stated that the public policy interest underlying section 7159 is to encourage written contracts for home improvements in order to protect unsophisticated consumers. (*Asdourian v. Araj, supra*, 38 Cal.3d at pp. 290, 292.) Further, although there is a general rule that contracts made in violation of a regulatory statute are void, courts will not apply such rule in certain situations. For example, the rule will not be applied where the statutory penalties exclude by implication the additional penalty of holding the contract void. In addition, in compelling cases, where the defendant's unjust enrichment will result at the plaintiff's expense, courts will enforce illegal contracts. (*Id.*, at pp. 291-292.)"

Davenport & Co. v. Spieker (1988) 197 Cal.App.3d 566, 569.

The *Asdourian* Court also noted that "a contract made in violation of section 7159 does not involve the kind of illegality which automatically renders an agreement void. The contracts at issue here were not *malum in se*. They were not immoral in character, inherently inequitable or designed to further a crime or obstruct justice. (*See Vitek, supra*, 34 Cal.App.3d at p. 593.) There was nothing "intrinsically illegal" about the agreements between plaintiff and defendant to repair and remodel the residential property. Rather, the contracts were *malum prohibitum*, and hence only voidable depending on the factual context and the public policies involved. (*Ibid.*)" *Asdourian, supra*, 38 Cal.3d at p. 293.

The Court finds that Plaintiff has adequately stated facts sufficient to constitute a cause of action for quantum meruit. Defendant's Demurrer as to the Second Cause of Action is **OVERRULED**. The proposed order will be modified.

IN RE: SYLVESTER

CASE NUMBER: 26CV-0210663

Tentative Ruling on Petition for Change of Name: Petitioner Tyler Sylvester seeks to change the name of his minor daughter. Proof of publication has been filed. However, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the

hearing date. See CCP § 1277(a)(4).

This matter first came on for hearing on July 20, 2026. The matter was continued to today's date, to permit the father to timely serve the mother with at least 30 days' notice of the hearing. No timely proof of service has been filed. An appearance is necessary on today's calendar to discuss status of service. Failure to appear will result in denial of the petition without prejudice to refile.

WRIGHT VS. TARGET CORPORATION

CASE NUMBER: 26CV-0210029

Tentative Ruling on Motion to Strike: Defendant Target Corporation moves for an Order striking certain portions of the First Amended Complaint on the grounds that punitive and exemplary damages are not support by facts sufficient to satisfy Civil Code section 3294 and are therefore irrelevant, improper, and not drawn in conformity with California law. Plaintiff opposes the Motion.

Meet and Confer: Before filing a motion to strike, a party is required to meet and confer in person or on the telephone. CCP § 435.5(a). A motion to strike shall be supported by a declaration stating either that the parties met and conferred or that they were unable to meet and confer. CCP § 435.5(a)(3). The Declaration of Michael Tafarella demonstrates compliance with the meet and confer requirement.

Merits: A motion to strike reaches only "irrelevant, false, or improper matter inserted in any pleading" or matter "not drawn or filed in conformity with the laws of this state." (Code Civ. Proc., § 436.) As with a demurrer, the court's review is limited to the face of the challenged pleading and matters subject to judicial notice; the allegations of the complaint are accepted as true, and extrinsic evidence offered by either side to create or resolve factual disputes is not properly considered on this motion. Code Civ. Proc., § 437(a).

Defendant moves to strike all references in the FAC to punitive and exemplary damages, arguing that Plaintiff has not adequately alleged facts sufficient to satisfy Civil Code section 3294. That section provides that a plaintiff may recover punitive and exemplary damages where clear and convincing evidence establishes that defendant has been guilty of oppression, fraud or malice.

“In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. Oppression means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. Fraud is an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63 (internal citations omitted).

Simply characterizing a defendant's conduct as "intentional, willful, malicious, fraudulent, [or] false" is patently insufficient to support a claim. *Smith v. Superior Court* (1992) 10 Cal. App. 4th 1033. Allegations that a defendant's conduct was wrongful, willful, wanton, reckless, or unlawful

charge negligence or nondeliberate injury, which do not rise to the level of malice. *Ibid.*

Plaintiff's factual allegations in the FAC do not support a prayer for punitive damages. Plaintiff generally alleges that she slipped and fell on a loose floor mat in Target on a rainy day. She further alleges that Defendant's response to the incident was inadequate. There are no allegations of conduct *intended* by Defendant to cause injury; of despicable conduct subjecting Plaintiff to cruel and unjust hardship in conscious disregard of her rights; or of intentional misrepresentation or concealment with intent to cause injury. Therefore, the Motion to Strike is **GRANTED**. The proposed order will be executed.

9:00 a.m. Review Hearings

CAICEDO VS. SUNBABE, LTD

CASE NUMBER: 25CV-0208229

This matter is on calendar for review regarding status of responsive pleadings. A motion to quash service of summons was filed by Defendant and set for hearing today. The motion was granted for failure to validly serve Defendant with the Summons and Complaint. The matter continued to **Monday, December 7, 2026, at 9:00 a.m. in Department 64** for status of service. No appearance is necessary on today's calendar.

EL RIO ESTATES LLC VS. CARUSO

CASE NUMBER: 26CVG-00667

This matter is on calendar for status of accounting. The Inventory and Accounting have been filed pursuant to California Civil Code section 798.61. The clerk is directed to close the file. No appearance is necessary on today's calendar.

LAKEVIEW LOAN SERVICING, LLC VS. GONZALEZ, ET AL.

CASE NUMBER: 25CV-0207895

This matter is on calendar for review regarding status of service. The Court intends to dismiss the action pursuant to an OSC re Dismissal on this morning's 8:30 a.m. calendar. Therefore, the review hearing is dropped from calendar, and no appearances are necessary.

LEWISTON COMMUNITY SERVICES DISTRICT VS. SUDA PROPERTIES, LLC, ET AL.

CASE NUMBER: 25CV-0208034

This matter is on calendar for trial setting. The Court designates this matter as a plan II case and intends to set the matter for trial no later than December 8, 2026. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

MCCAIN VS. EST OF RICHARD CARL RIPLEY, ET AL.

CASE NUMBER: 25CV-0207239

This matter is on calendar for review regarding status of service, improperly named defendants, and failure to record a notice of pendency of action. The proofs of service on file indicate that

Plaintiff in her individual capacity, is suing herself, as administrator of her parents estate. It appears to the Court that Plaintiff has named improper parties as defendants in this action, as she is seeking to quiet title as to a John Parker and Mary Parker, not as to the estates of Richard and Dolores Ripley. Additionally, it appears that Plaintiff has failed to record a Notice of Pendency of Action (lis pendens) for the subject property as required by CCP § 761.010(b). Plaintiff is ordered to appear today to discuss: the status of her case, the proper defendants to this action, and providing notice to those defendants.

MIDLAND CREDIT MANAGEMENT, INC. VS. HAM
CASE NUMBER: 25CVG-02474

This matter is on calendar for review regarding status of the case. Notice of Conditional Settlement was filed on March 2, 2026 indicating the matter would be dismissed no later than July 16, 2028. Plaintiff attempted to dismiss the action on August 13, 2026, but the request was rejected by the clerk due to defects. The matter is continued to Monday, August 14, 2028 at 9:00 a.m. in Department 64 for status of dismissal. The Court intends to dismiss the matter without prejudice on that date per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the hearing. No appearance is necessary on today's calendar.

REGER VS. STEIGER
CASE NUMBER: 25CV-0207850

This matter is on calendar for review regarding status of settlement and status of escrow. No status statements have been filed. Appearances are necessary on today's calendar to provide the status of this matter.

ROCKY TOP RENTALS, LLC VS. VAN NORMAN ERICKSON, ET AL.
CASE NUMBER: 25CVG-02320

This matter is on calendar for review regarding status of service. This action was filed November 6, 2025 and is still not at issue. No proof of service of summons is on file for Defendant Eli Van Norman Erickson or Mark Ludwig. Trial is set to commence October 6, 2026. An appearance is necessary on today's calendar to provide a status of service or dismissal as to these defendants.

THEKKUMTHALA VS. INTERVENTIONAL RADIATION ONCOLOGY OF CALIFORNIA, ET AL., ET AL.
CASE NUMBER: 25CV-0208996

This matter is on calendar for review regarding status of arbitration. The matter was ordered to arbitration on December 11, 2025. No status statements have been filed. Appearances are necessary today to provide a status.

VELOCITY INVESTMENTS LLC VS. VELA, JR
CASE NUMBER: 25CV-0208785

This matter is on calendar for review regarding status of default judgment. Default judgment was entered on July 23, 2026. The clerk is directed to close the file. Today's review hearing is dropped from calendar, and no appearances are necessary.